Bambuddy Appliance Terms

https://get.bambuddy.cool/terms.html

These terms apply to every purchase of the Bambuddy Appliance: Personal and Lifetime, each bought once, and the Business subscription. Bambuddy itself is free software under the AGPL and costs nothing. Deutsche Fassung · Refund policy

Section 1 — Provider, contracting parties, scope

(1) The provider of the Appliance Software is Martin Ziegler, Warschauer Str. 12, 10243 Berlin, Germany, email support@bambuddy.cool ("Provider").

(2) Our order process is conducted by our online reseller Paddle.com. Paddle.com is the Merchant of Record for all our orders: Paddle.com Market Limited, or in the United States Paddle.com Inc. and in Canada Paddle.com (Canada) Ltd. ("Paddle"). Paddle is therefore the seller and the Customer's contracting party for ordering, payment, invoicing, VAT and sales tax, withdrawal and refunds, and provides all customer service inquiries on those matters. Paddle's Buyer Terms govern them.

(3) These Terms govern what a purchase of the Appliance consists of and the conditions under which the Appliance Software may be used. In case of conflict, Paddle's Buyer Terms prevail for ordering, payment and withdrawal.

(4) The Customer's own terms do not apply, even if not expressly rejected.

Section 2 — Definitions

Appliance Software means the Provider's proprietary software: the first-boot setup wizard, the admin panel, the provisioning and registration command-line tooling, the image build scripts, the systemd units, and the associated configuration, templates, assets and documentation.

Bundled Components means third-party software packaged into, or downloaded at build time by, an image — in particular Bambuddy, Raspberry Pi OS, Debian packages and container images. Bundled Components are **not** part of the Appliance Software and are governed solely by their own licences.

Image means the image file supplied by the Provider for writing to a storage medium.

Device means the single-board computer on which the Customer runs an Image.

Licence Key means the string issued to the Customer on purchase.

Registrar means the Provider's service with which a Device registers and from which it retrieves its status.

Update Archive means the Provider's curated package archive from which a registered Device obtains updates to the Appliance Software.

Edition means Personal, Lifetime or Business (Section 5(5)).

Update Period means the period during which a Licence Key gives access to the Update Archive (Section 7).

Support Period means the period during which support under Annex A is included (Section 7).

Section 3 — What a purchase includes

(1) A purchase includes:

a. access to the Image and to the Update Archive for the Update Period,

b. support as set out in Annex A for the Support Period,

c. the right to run the Appliance Software on **one** Device (Section 5).

(2) The Customer supplies their own hardware. The Provider sells no hardware and ships nothing.

Section 4 — What a purchase does not include

(1) **No rights in Bambuddy.** Bambuddy is free software under the GNU Affero General Public License, version 3 or later, and is available free of charge independently of the Appliance. A purchase grants no rights in Bambuddy and restricts none of the rights the AGPL confers — in particular the rights to use, study, modify and redistribute. The same applies to every other Bundled Component.

(2) No hardware and no delivery of physical goods.

(3) No undertaking as to third-party services or products, in particular the printer manufacturer's cloud services, the firmware of connected printers, or model platforms. If a third party changes its interfaces, a feature may cease to work.

(4) No undertaking that a reported fault will be fixed, or fixed within any particular period. Support owes a response, not a result (Annex A).

(5) No availability guarantee for the Registrar or the Update Archive. The Provider will make reasonable efforts and will announce maintenance windows where possible. Unavailability does not affect the running Appliance (Section 8(1) applies accordingly).

Section 5 — Licence to use the Appliance Software

(1) The Customer receives a non-exclusive, non-transferable and **perpetual** right to run the Appliance Software on the registered Device for its intended purpose. This right to run does not end with the Update Period (Section 8(1)).

(2) Without the Provider's prior consent, the Customer must not:

a. copy, distribute, rent, lend or make publicly available the Image or the Appliance Software,

b. pass on or publish the Licence Key,

c. run the Appliance Software on more than one Device at a time per Licence Key,

d. circumvent or tamper with registration or entitlement checking,

e. remove or alter copyright, licence or provenance notices.

(3) Mandatory rights under sections 69d and 69e of the German Copyright Act (error correction, decompilation for interoperability) are unaffected.

(4) **For the avoidance of doubt.** Subsections (1) to (3) apply solely to the Appliance Software. Bundled Components are governed solely by their own licences. Nothing in these Terms restricts the rights those licences grant.

(5) The Appliance is offered in three Editions: **Personal** and **Lifetime**, each a one-time purchase, and **Business**, a subscription. Use in the course of a commercial or other professional activity requires Business; Personal and Lifetime are limited to non-commercial use.

Section 6 — Licence Key, registration, device binding

(1) The Customer receives the Licence Key on purchase and enters it in the setup wizard.

(2) The Device registers with the Registrar and thereafter reports approximately once a day. Only the following are transmitted: a device identifier derived from the board serial number, the batch identifier, the Licence Key, the hardware model designation, and the Appliance Software version. In addition, the Device retrieves its entitlement status hourly; that request transmits only the device identifier and the device token issued by the Registrar, and is not logged by the Provider.

No print data, no files, no user data and no credentials are transmitted. The IP address is stored only as a salted hash and only for the detection of multiple use, never in the clear.

(3) Where a Device is replaced, reinstalled, or its storage medium fails, the Provider will on request to support@bambuddy.cool open a one-time re-registration window. No replacement is issued automatically.

(4) An automated check may detect indications that one Licence Key is in use on several Devices and flag the registration. The Customer may object informally and the Provider will review without undue delay. For the consequences of a flag, see Section 9.

Section 7 — Update Period, Support Period, renewal, termination

(1) **Personal.** The Update Period and the Support Period are twelve months from issue of the Licence Key. They end by themselves; there is nothing to terminate.

(2) **Lifetime.** The Update Period lasts for as long as the Provider develops the Appliance Software. The Provider will announce the end of development in text form and in the admin panel at least twelve months before it takes effect; the Update Period ends then. The Support Period is twelve months from issue of the Licence Key.

(3) **Business.** The Update Period and the Support Period run with the subscription, initially for twelve months from issue of the Licence Key.

(4) For consumers, a Business subscription continues after the first twelve months for an indefinite period and may be terminated at any time on one month's notice.

(5) For business customers, a Business subscription renews for successive periods of twelve months unless terminated on one month's notice before the end of the current period.

(6) A Business subscription is terminated through the Paddle buyer portal linked in the order confirmation, through paddle.net, or in text form to support@bambuddy.cool.

(7) Personal can be upgraded to Lifetime by arrangement with the Provider; the upgrade is invoiced directly and the Licence Key stays the same.

(8) The right to terminate for cause is unaffected.

Section 8 — Effect of the Update Period ending

(1) **The Appliance continues to run unchanged.** Bambuddy, the connected printers, running and queued print jobs, and all stored data are unaffected. Nothing is switched off, locked or deleted.

(2) On expiry of the Update Period, access to the Update Archive ends; on expiry of the Support Period, support ends.

(3) The admin panel displays a notice that the Update Period has expired. That notice is a notice, not a functional lock.

(4) If a Business subscription is resumed, update access and support resume with it. If Personal is upgraded to Lifetime, update access resumes.

Section 9 — Flagging and suspension of a registration

(1) The Provider may flag or suspend a registration where:

a. the Licence Key has been passed on or published contrary to Section 5(2),

b. it is in use on several Devices contrary to Section 5(2)(c),

c. registration or entitlement checking has been circumvented,

d. payment has been charged back, refunded or not made,

e. there is reasonable suspicion of any of the above.

(2) **Effect.** A suspension affects the admin panel only: it refuses management actions and states why. Read-only functions (system status, logs, support bundle) remain available so that the Customer can see the reason and gather documentation. **Bambuddy, the connected printers and printing itself are unaffected.**

(3) Except in the case of subsection (1)(d) and in cases of manifest abuse, the Provider will allow 14 days to respond before suspending.

(4) A suspension is lifted once its cause no longer applies. The lifting reaches the Device with the next status retrieval, within one hour at the latest.

(5) Suspension under this Section is distinct from expiry of the Update Period under Section 8. Expiry of the Update Period causes no suspension.

Section 10 — Customer obligations and responsibilities

(1) The Customer uses hardware in accordance with the published hardware list (computer model, memory, power supply, cooling, storage medium). Support for deviating hardware is provided on a best-efforts basis only.

(2) Operation, power supply, network, network security, credentials and backup of the Customer's own data are the Customer's responsibility.

(3) **Printer operation.** 3D printers are heated machines with moving parts. Their siting, operation, supervision, fire safety and compliance with their manufacturer's instructions are exclusively the Customer's responsibility. The Appliance Software controls printers at the Customer's instruction; it does not replace supervision and is not a safety device within the meaning of product safety law.

Section 11 — Prices, payment, taxes

(1) The prices stated in the Paddle checkout apply. Payment, invoicing and the treatment of VAT, sales tax and comparable taxes are governed by Paddle's Buyer Terms as seller (Section 1(2)).

(2) Prices shown to consumers are total prices inclusive of the applicable VAT (section 3 of the German Price Indication Ordinance). Prices shown to business customers are net of VAT, which is added at the statutory rate; within the European Union, supplies to a customer providing a valid VAT identification number are invoiced under the reverse-charge procedure.

Section 12 — Consumer right of withdrawal

(1) Consumers have a statutory right of withdrawal of 14 days.

(2) For digital content the right of withdrawal lapses under section 356(5) of the German Civil Code where the consumer expressly consents to performance beginning before the withdrawal period expires and acknowledges that they thereby lose that right. This declaration is obtained during checkout.

(3) The withdrawal instructions and the model withdrawal form are provided by Paddle as seller.

(4) **Money-back promise.** Independently of any statutory right, the Provider will have the full price refunded if the Customer asks for it within 14 days of the purchase or, for Business, of a renewal charge, without giving a reason. Refunds are issued by Paddle. With the refund the Licence Key is revoked (Section 9(1)(d)); Bambuddy and the connected printers are unaffected (Section 9(2)). Details are set out in the refund policy at https://get.bambuddy.cool/refund-policy.html.

Section 13 — Warranty and updates

(1) For consumers, the statutory provisions apply, and for digital products sections 327 et seq. of the German Civil Code.

(2) For business customers the limitation period for defect claims is twelve months from supply; section 377 of the German Commercial Code is unaffected.

Section 14 — Liability

(1) The Provider is liable without limitation for intent and gross negligence, for injury to life, body or health, under the German Product Liability Act, and to the extent of any guarantee given.

(2) For ordinary negligence the Provider is liable only for breach of a material obligation whose performance is essential to the proper execution of the contract and on whose observance the Customer may routinely rely, and then limited in amount to the foreseeable damage typical of this type of contract, up to a maximum of the price paid, and for Business of the fees paid for the last twelve months.

(3) Liability is otherwise excluded.

(4) For loss of data the Provider is liable under the preceding subsections only up to the cost of restoration that would have been incurred had the Customer taken proper and regular backups.

(5) The Provider is not liable for damage arising from the operation, siting or unsupervised running of connected printers (Section 10(3)), nor for impairments caused by third-party services, firmware or interfaces (Section 4(3)).

(6) The above limitations also operate in favour of the Provider's vicarious agents.

Section 15 — Data protection

The processing of personal data is governed by the privacy notice at https://get.bambuddy.cool/privacy-policy.html. What the Device transmits to the Registrar is described exhaustively in Section 6(2).

Section 16 — Changes to these Terms

The Provider may amend these Terms with effect for the future. Amendments will be notified to the Customer in text form at least six weeks before they take effect. If the Customer does not object before they take effect, the amendments are deemed accepted; the notification will say so expressly. If the Customer objects, either party may terminate with effect from the date the amendment would take effect.

Section 17 — Final provisions

(1) German law applies, excluding the UN Convention on Contracts for the International Sale of Goods. For consumers, the mandatory consumer-protection provisions of the state of their habitual residence remain unaffected.

(2) The place of jurisdiction for all disputes is Berlin, provided the Customer is a merchant, a legal person under public law, or a public-law special fund.

(3) **Language versions.** These Terms exist in a German and an English version. For customers resident or established in Germany, Austria or Switzerland the German version governs; for all other customers the English version governs. The licence texts of the Bundled Components apply solely in their respective original versions; for the GNU Affero General Public License that is the English text.

(4) Declarations under these Terms require text form.

Annex A — Scope of support

What this annex is, and is not. It describes the support included in a purchase. That support covers **the Appliance**: the Image, the Appliance Software, updates, registration and Licence Keys. It is **not operational support for a printer fleet** and it is not the Provider's service contract for running Bambuddy. That is a separate product with its own contract, its own response times and its own pricing; a Business subscription does not replace it and confers no rights under it.

Channel.

- Personal and Lifetime: the public issue tracker of the Bambuddy project, https://github.com/maziggy/bambuddy/issues. Requests there are public; the Customer must not post the Licence Key or other confidential data in them.
- Business: email to support@bambuddy.cool, handled with priority.
- All Editions: the Licence Key, orders, refunds and re-registration (Section 6(3)) by email to support@bambuddy.cool.
- Telephone, chat and remote access to the Customer's system are not included.
- Faults in Bambuddy itself belong in the public project repository, where they are handled alike for every user, customer or not.

Service hours. Monday to Friday, 09:00 to 17:00 CET/CEST, excluding public holidays at the Provider's seat.

Absence. The Provider may suspend the response time for up to **15 working days per calendar year** in total (holiday, illness, other absence). Planned absences are announced at least seven days in advance by email and in the admin panel, unforeseen ones without undue delay. The response period does not run during an announced absence.

Response time.

- Personal and Lifetime: best efforts, no undertaking.
- Business: normally on the next working day, **and within two working days at the latest**, from receipt of the request within service hours.
- What is promised is a response, not a fix. A time to fix cannot be promised (Section 4(4)).

Covered.

- installation and first setup of the Image on hardware from the published hardware list
- faults in the Appliance Software itself
- updates to the Appliance Software and rolling them back
- registration, Licence Keys, device replacement under Section 6(3)

Not covered.

- Bambuddy as an application, where the fault is not caused by the Appliance
- the Customer's network, router, firewall, VPN and internet connection
- printers, their firmware, calibration, filament and print results
- Customer hardware outside the published hardware list
- the Customer's own modifications, containers or packages
- **migrating data from an existing Bambuddy installation** (see "Chargeable additional services")
- **restoring the Customer's data**, in particular after failure or corruption of the storage medium; backup is the Customer's responsibility (Section 10(2))

- on-site work, remote access, training and consultancy

Chargeable additional services. The Provider offers migration of an existing Bambuddy installation (Docker or bare metal) to the Appliance at a fixed price. It is agreed and invoiced directly between the Provider and the Customer, not sold through Paddle. This covers transferring the existing data and printer connections into a new Appliance installation. It does not cover rebuilding the Customer's own containers, automations or other system modifications, nor restoring incomplete or corrupted data. It is a separate contract and not part of a purchase.

Case-by-case limits. Support is limited to the subject matter described in this annex and to an extent customary for a single installation. Requests beyond that may be offered by the Provider as separate consultancy.

Languages. German and English.

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